Measurement Canada enforcement policy for weighing and measuring devices, part 1 – authorized service providers

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Table of contents

- 1.0 Introduction
- 2.0 Non-compliance policy and procedure for devices used in trade
- 3.0 Non-compliance policy and procedure for devices not used in trade
- 4.0 Procedure following the seizure of devices by Measurement Canada
- 5.0 Revisions

1.0 Introduction

1.1 The policy and procedures described in this document give authorized service providers (ASPs) guidance with respect to the actions they are expected to take to support Measurement Canada examination programs

and enforcement activities.

This material is in addition to the requirements stipulated in the *Weights and Measures Act* and Regulations, accreditation standard S-A-01 and the Measurement Canada Registration Program Terms and Conditions.

1.2 This policy provides instructions for ASPs about rejections and warnings related to devices, notifications to Measurement Canada of serious non-compliances, and actions related to devices seized by Measurement Canada inspectors.

1.3 ASPs who examine weighing and measuring devices are required to take certain actions when devices do not comply with the legislation.

1.4 ASPs are expected to educate and instruct their clients (traders) so that they comply with the legislation.

1.5 ASPs are to contact their designated Measurement Canada Alternative Service Delivery representative if they have questions about any actions they are required to take or the information presented in this policy.

2.0 Non-compliance policy and procedure for devices used in trade

2.1 A device found to have one or more of the following non-compliances must be reported within **two (2) business days** to Measurement Canada, regardless of whether corrective actions were taken or not:

2.1.1 A non-approved device found to be used in trade.

2.1.2 An approved device found to be used in trade without prior initial examination pursuant to paragraph 8(*b*) of the Act and the device cannot be readily examined or, upon initial examination, it does not fully comply with the Act and Regulations.

2.1.3 An approved device found to be used in trade without prior initial examination pursuant to paragraph 8(*b*) of the Act and the trader refuses to have the device examined.

2.1.4 A device has been modified or installed in such a way that it facilitates fraud.

2.1.5 An approved device found to be used in trade which has previously been examined pursuant to paragraph 8(*b*) of the Act, but does not meet current installation requirements.

> **Note:**
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> In some cases, there may be valid reasons for an apparent deviation from installation requirements. ASPs are to consult with their designated Measurement Canada contact for instructions on how to proceed.

2.2 If a device examination certificate is issued, ASPs report non-compliances set out in section 2.1 by submitting the device examination data and test results in Measurement Canada's Online Reporting Application (ORA).

If no examination certificate is to be issued, the ASP must provide the following information to the nearest Measurement Canada district office within **two (2) business days** following the discovery of the non-compliance:

- The name of the device owner.
- The address where the device is located.
- Information to identify and describe the device.
- The nature of the non-compliance.

2.3 A device found to have one or more of the non-compliances in sections 2.3.1 through 2.3.4 must be reported within **two (2) business days** to Measurement Canada if:

a. The device cannot be examined; or
b. The device cannot be brought into compliance at the time of an examination.

2.3.1 A device found with a measurement error in excess of three times the applicable limit of error and the error is in favour of the trader.

2.3.2 An interlock that prevents a device from being used before its registration has been returned to zero is found to be inoperative (e.g., faulty interlocks on gasoline dispensers).

2.3.3 Where all of the following conditions apply:

1. The registration of total price is not in mathematical agreement with the value derived from the indicated quantity and unit price;
2. The difference between the displayed total price and the computed total price is greater than the monetary value derived from the allowable device limit of error for that test quantity and the displayed unit price; and
3. The error is in favour of the trader.

2.3.4 When all of the following conditions apply to a device:

1. The device is used in trade in one of the eight trade sectors subject to mandatory examinations;
2. The device is overdue for mandatory examination or overdue for recertification after a non-compliance; and
3. The device cannot be readily examined by the ASP or the trader refuses to have the device examined.

2.4 For the non-compliances described in subsection 2.3, ASPs submit device examination data and test results in ORA in order for a device examination certificate to be issued.

2.5 ASPs are to notify Measurement Canada as soon as possible by telephone when they find major non-compliances with the usage requirements of the *Weights and Measures Act* and Regulations and related specifications (e.g., a device is used fraudulently, no tare is applied when the required tare is a large amount, the zero-setting mechanism on a gasoline dispenser is being used improperly, etc.).

2.6 When reporting one of the non-compliances set out in subsection 2.5, the ASP must provide the following information:

- The name of device owner.
- The address where the device is located.
- Information to identify and describe the device.
- The nature of the non-compliance.

3.0 Non-compliance policy and procedure for devices not used in trade

3.1 When ASPs find an approved device that has previously been examined pursuant to paragraph 8(*b*) of the Act, but is no longer being used in trade and is marked "Not for Use in Trade", they will change the status of the device to inactive in ORA.

3.2 When ASPs find an approved device that has previously been examined pursuant to paragraph 8(*b*) of the Act, but is no longer being used in trade and is **not** marked "Not for Use in Trade", they will take the following actions:

3.2.1 With the consent of the trader, affix a "Not for Use in Trade" sticker to the device.

3.2.2 Change the status of the device to inactive in ORA.

3.3 When ASPs find an approved device that has **not** previously been examined pursuant to paragraph 8(*b*) of the Act, is not being used in trade and is not marked "Not for Use in Trade", they will, with the consent of the trader, affix a "Not for Use in Trade" sticker to the device.

4.0 Procedure following the seizure of devices by Measurement Canada

4.1 Ensure that permission to make repairs has been given in the "Permission/Comments of Inspector" section of the notice of seizure and detention issued by the Measurement Canada inspector.

4.2 Perform an examination of a device requiring a certification after a repair, or a device that is overdue for mandatory examination, and ensure the device is verified compliant before requesting a release from seizure.

4.3 Upon completion of repair, ensure that the Measurement Canada inspector has not restricted the release of the device under seizure in the "Permission / Comments of Inspector" section of the notice of seizure and detention.

4.3.1 If there are no restrictions on releasing the device, the recognized technician may, with the permission of the device owner, perform an examination.

4.3.2 If restrictions on releasing the device have been stated in the notice of seizure and detention, follow the directions given or contact the local Measurement Canada district office for directions.

4.4 When repairs have been completed and an examination of the seized device has been performed, the recognized technician must:

4.4.1 Immediately contact the local Measurement Canada district office by telephone and inform the district manager of the following details:

- The number of the Measurement Canada certificate used to seize the device.
- The establishment name and number.
- The serial number of the device.
- The nature of the repair.
- The test results, including the type and quantity of standards used.

If the call is made after business hours or there is no answer, a message must be left outlining the above details.

4.4.2 Within 48 hours, submit device examination data and test results in ORA for the issuance of device examination certificates and send a copy of the notice of repair (reverse side of the notice of seizure and detention) by fax, email or other expedient method to Measurement Canada

4.5 When there are no restrictions on releasing the device stated in the notice of seizure and detention, a device that has been examined and verified compliant is released from seizure and can be put back into service.

4.6 When repairs have been completed and an examination of the seized device cannot be performed, the recognized technician must:

- Complete a notice of repair.
- Immediately contact the local Measurement Canada district office by telephone and inform the district manager of the details. If the call is

made after business hours or if there is no answer, a message must be left outlining the details of the seizure and repair.
- Within 48 hours, send a copy of the notice of repair by fax, email or other expedient method to the local Measurement Canada district office.

4.7 When there are no restrictions on releasing the device stated in the notice of seizure and detention, a device that has been repaired but not examined may, with the permission of the district manager, be released from seizure.

4.8 Devices subject to mandatory examination remain under seizure when the device is not examined and verified compliant.

4.9 When a repair attempt has been made but does not correct the non-compliance that led to the seizure, the device is to be left under seizure until such time as repairs are completed and the conditions outlined in sections 4.5, 4.7 and 4.8 are met.

4.10 When a repair attempt has been made and the non-compliance that led to the seizure has been corrected but the device is still non-compliant for other reasons, the device is to be left under seizure until such time as it is released from seizure by the district manager.

5.0 Revisions

Revisions table

Revision number	Date of revision	Language	Section	Nature of the revision or addition

Revision number	Date of revision	Language	Section	Nature of the revision or addition
5	May 2017	English and French	Document	Updated policy to address mandatory examinations. Updated format to match required format for policy documents.
4	March 2016	English and French	Document	Changes to requirements relating to reporting methods. Editorial corrections throughout.
3	August 2012	English and French	Sections 2.0 and 3.0	Major changes to policy. Editorial and content corrections throughout.
2	March 2013	English and French	Document	Minor editorial corrections throughout. Revised document date from January to April 2012.
1	October 2011	English	Section 2.2.5	Minor editorial correction.
		French	Section 1.4	Minor editorial correction to replace "*soient*" with "*se*" and "*conformes*" with "*conforment*"
		English and French	Title	Title changed to clarify authorized service provider actions in support of Measurement Canada enforcement policies.

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